

SENATE No. 32

The Commonwealth of Massachusetts

PRESENTED BY:

Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolve:

Resolve relative to digital impersonation and exploitation.

PETITION OF:

NAME:

Julian Cyr

DISTRICT/ADDRESS:

Cape and Islands

SENATE No. 32

By Mr. Cyr, a petition (accompanied by resolve, Senate, No. 32) of Julian Cyr that provisions be made for an investigation and study by a special commission (including members of the General Court) relative to the potential impacts and legal implications of advanced technology and the internet on protecting individuals from exploitation. Advanced Information Technology, the Internet and Cybersecurity.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Resolve relative to digital impersonation and exploitation.

1 **Resolved**, (a) There shall be a commission to examine and investigate the potential
2 impacts and legal implications of advanced technology and the internet on protecting individuals
3 from harm, abuse and exploitation.

4 (b) The commission shall consist of: the attorney general or a designee, who shall serve
5 as chair; the chairs of the joint committee on the judiciary or their designees; the chairs of the
6 joint committee on advanced information technology, the internet and cybersecurity or their
7 designees; the minority leader of the senate or a designee; the minority leader of the house of
8 representatives or a designee; the secretary of the executive office of public safety and security
9 or a designee; the secretary of the executive office of technology services and security or a
10 designee; the chief justice of the trial court or a designee; the chief counsel of the committee for
11 public counsel services or a designee; the executive director of the American Civil Liberties
12 Union of Massachusetts, Inc. or a designee; the executive director of Jane Doe, Inc.: The
13 Massachusetts Coalition Against Sexual Assault and Domestic Violence or a designee; the

executive director of MASOC, Inc. or a designee; the executive director of the Massachusetts Chiefs of Police Association Inc. or a designee; and a member of the Massachusetts District Attorneys' Association.

(c) The commission shall examine and investigate the potential impacts and legal implications of advanced technology and the internet on protecting individuals from harm, abuse and exploitation, including, but not limited to issues regarding: (i) the false impersonation of an individual by the use of an individual's name, likeness, photographs, and pretending to be the individual or by occupying their position, whether through in-person interactions or by internet or electronic based communications, without the express authorization of that person, and using such assumed character with intent to obtain a benefit, to injure or defraud another or to harass or embarrass the person being impersonated; (ii) the creation or distribution of a video of a person in which their face or body has been digitally altered such that they appear to be someone else with the intention of spreading malicious or false information; (iii) the exchange of written sexually obscene private conversations, content or screenshots between or among adults in which the corresponding individuals are identifiable; and (iv) the existence, status, or necessity of a reasonable expectation of privacy with regards to text messages sent to another person's cell phone.

(d) Not later than December 31, 2026, the commission shall file an interim report with the joint committee on judiciary, the joint committee on advanced information technology, the internet and cybersecurity, and the senate and house committees on ways and means. Not later than July 31, 2027, the commission shall file a final report of its findings and recommendations, together with drafts of legislation necessary to carry such recommendations into effect, by filing the same with the joint committee on judiciary, the joint committee on advanced information

37 technology, the internet and cybersecurity, and the senate and house committees on ways and
38 means.”.